

THE REVIEW

Vol. I, No. 5

May, 1911

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PRISONERS AFIELD

WARDEN J. T. GILMOUR, CENTRAL PRISON, ONTARIO, CANADA.

[Stenographic report of Dr. Gilmour's address at the annual meeting of the New Jersey State Charities Aid and Prison Reform Association, April 1, 1911. Though The Review guards jealously its space, having but sixteen pages monthly, we are sure our readers will agree with us that the space filled by this article is well filled.—Editor]

When we speak of criminals, we are very apt to picture in our mind's eye the great criminals, those who commit atrocious crimes. But that class forms but a very small percentage of every prison population, and the methods of dealing with this class are much more clear and definite than dealing with the much larger class that are not quite so dangerous to society. When we speak of criminals we are apt to think of them *en masse* as a congregation of a few hundred or a few thousand men walled within a prison. Carlyle dissipates this view when he says: "Masses? Yea, masses, every unit of whom has his own heart and sorrows—stands there covered with his own skin; and if you prick him he will bleed."

In dealing with delinquency there are two basic facts; that the great majority of criminals are made in their youth, and that the great majority of youthful criminals are handicapped in life's race either by physical, mental, or moral defects. That prince of sociologists, Victor Hugo, evidently appreciated these conditions when he gave us that beautiful injunction to study evil lovingly, and then, later on, he gave the key when he said: "There are no bad weeds. They are only bad cultivators."

Two or three weeks ago a young man came into the corridor of our prison one day and asked, "Warden, will you take me out to the farm?" (A prison farm, of which I hope to speak a little later). I said, "No, Smith, I cannot take you out." Over in our country when we wish to conceal a man's identity we always call him Smith; and if we are particularly careful, we call him John Smith. This man was a repeater; he was doing his fifth term; the four previous terms he had been a very difficult man to get along with;

but this time he had done very well. We could take no exception to either his conduct or his industry. He said to me, "Have I not done well this time?" I said, "You certainly have." "Well, then," he said, "Won't you give me a chance?" Of course, he had me there; I couldn't refuse him. I said, "Yes, I'll give you a chance." I took him up to the farm on a Monday; he worked well on Tuesday and on Wednesday; and on Wednesday night he skipped. The following Friday we got him again, in a town one hundred and fifty miles from home; and I pitied the poor fellow when he came back, he looked so dejected and so crestfallen; but I blamed myself entirely. I had imposed a burden of self-denial and a responsibility of conduct upon that man that he was not able to bear. He was one of that class, typical of a considerable percentage of our prison populations, that is on the borderland between sanity and insanity; and all the prison officials who are here to-night will recall scores of that class who form a part of their prison population.

As I say, I had made a mistake with this boy; but it only goes to show that penologists are not infallible, not even the youngest of them. If we were to stop to speculate upon the place that this element occupies in the divine scheme, we might tread upon very dangerous ground. It is enough for us to know that the God that made them is the God that will judge them; and herein lies our consolation. I had a man come into prison a few weeks ago to do two years; and yesterday afternoon, just an hour before I left home for coming down here, his wife came into my office leading a beautiful child five years of age by the hand. She came, as so many poor women come, to see if it were not possible to get some relief from her almost intolerable position. As the cruel truth dawned upon her that it was impossible for me to exercise clemency in regard to her husband, the women turned to me and she said, with much emphasis, "If they would only send me and my child to prison, how much better it would have been."

And the woman expressed a great verity. This little episode I relate to show you that society has two obligations: one to the man shut up within the prison, and perhaps an even greater obligation to the poor woman and children dependent upon the man shut up within the prison. It is necessary to lock up a certain class of men that society may be protected, and that these men may be improved; but when we do that, are we going to put their families in a position in which they will be impelled into either vice or crime? I think it is Milton who asks the pertinent question:

“What boots it, by one gate to make defence
And at another to let in the foe?”

In dealing with the wives and children, as well as with the prison inmates, over in our place, we find an immense help from the Salvation Army. We have a prisoner's aid association and they work harmoniously together; but the Army has one or two advantages in this work that no other organization possesses. In the first place, they are not sentimentalists. They detail one man to give his time to it. He is as free to go into our prison as I am; and I think he spends as much time there as I do. He is there at night, on Sundays, on holidays, at noon hours; and he is going from cell to cell—he becomes thoroughly acquainted with every inmate. That gives that man an immense advantage in dealing with those men when their terms expire. The prison worker that expects to meet the discharged prisoner at the prison gate the morning he comes out, is much more apt to be worked by the prisoner than he is to work the prisoner. In three cases out of five he is clay in the hands of a designing man. One of our governors some years ago said that Canada was a land of magnificent distances. The same remark applies to your republic; but we get prisoners 1,300 miles from our prison. The Army, learning the condition of the families dependent on the man within the prison, writes to the corps, the Salvation Army corps in the town or the city where the man came from, and they are able, by their very extensive and highly perfected organization, to make a study of each family, in addition to having arrangements made there for the employment of that man when his term has expired. We try, just as far as possible, to get all of our ex-prisoners out of the city. We do not wish them to colonize; we try to get them back to their homes where they came from; for unless a man is willing to go back and face society, and live it down, the chances are that he will be driven into what is wrong sometimes through fear.

A year ago now, we started our farm. It is fifty miles out of the city; it contains 530 acres. I commenced by taking up a little detachment of 14 men; and I rapidly increased that until I had 180 men, housed in temporary quarters on this farm. The average term of the man on the farm was about five or six months, though I had several men there who had to do from one to two years. So far we have taken out to this farm 500 men, and out of that 500, four have escaped successfully, and three or four have attempted to escape—unsuccessfully. The other day a minister in our city was calling,

and I gave him these statistics, and he looked very sad; he said it was a pity. I said it was; “but,” I said, “can you take 500 of your church membership and have 495 of them make good?” And he changed the subject.

I had a grand jury visit me the other day; it is a custom, over in our country, for the grand juries to come over a few times a year and tell us how to run the place (they sometimes stay an hour); and the foreman, before he went away, said to me, “Warden, I suppose you select the men whom you take out to the farm.” I said, “No, sir. I don’t.” He said, “How do you manage?” I said, “I select a very few whom I *don’t* take;” for I can take 90 per cent. About three weeks ago I was going into the farm one day; it was a cold, snowy, blowing, blustering day; the thermometer was about zero. When I came near to our building it was quarter to twelve o’clock; and I saw men coming from this direction, and that direction, and from every direction pass alone; no officers with them at all; and it impressed me, perhaps, much more than it would another one not engaged in this work; for I asked myself the question—“How is it? These are the very men that I have had in Toronto behind bolts and bars, watched over by guns and guards; and here they are out here, as free as this air that blows, and they are all coming in to sit down with each other at dinner.” I have asked our men on the farm—many of them, different types, at different places, at different times, and I have asked them all the same question:—“What do you find the greatest difference as between the prison in the city and the prison out here on the farm?” And without a single exception, in one form or another those men have invariably given me the same reply. We give good board at the prison, but it was not that; it was not this liberty, comparative liberty. They have said to me: “Warden, to get away from that cell! To get away from that cell!”

I asked a boy two weeks ago, a young man, and he said, “Warden, to get away from that cell; for,” he said, “to sit there on Sunday, every evening and on holidays and have that cell gate staring you in the face, it is hell;” and he didn’t say it to be irreverent or disrespectful, but it was his pent up emotions. I believe there is something debasing—debasing to a man’s personal manhood—about life in a cell that no one can describe. Our men plow, they harrow, they sow the grain, they reap it; there is no guard with them at all. Of course, these are men who are near the end of their terms, perhaps men who have three months or less to do; but every prison contains

enough of that class to enable them to carry on this class of work, agricultural work, to a financial advantage. If we had to pay guards to be with these various men, we couldn't do it; but we don't. There is an indefinable something in God's out-of-doors that has a beneficial effect upon humanity. I can not tell you what it is. "The wind bloweth where it listeth, and thou hearest the sound thereof, but thou canst not tell whence it cometh nor whither it goeth. So is every man that is born of the spirit."

A few months ago a professor from the University of Kansas wrote a little poem of two or three verses; and one of the verses reads like this:

"A breeze on the far horizon,
The infinite tender sky—
The ripe, rich tint of the corn fields
And the wild geese sailing high;
And all over upland and lowland
The charm of the golden-rod:
Some of us call it autumn
And others call it God."

Do you catch the spirit of those beautiful lines? They tell (what I should like to tell were I able) of the way God speaks to our delinquents out on the farm through the hazy atmosphere and the golden sunsets; they tell of the way God speaks to those poor fellows through the growing and the ripening grains, and of the message that God sends to them through the birds that sing and soar over their heads. It suggests that beautiful thought of Browning's:

"This world, as God has made it,
Always glitters. And knowing this is love,
And love is duty."

We are aiming at something definite in the construction of our new prison. We are going to try to give that large class of boys and young men that come to prison for the first time one more opportunity of going through life without being immured in a prison cell. In the construction of our buildings, our domicile accommodation will be largely of the dormitory type;—small dormitories, accommodating 14 beds, with a large, semi-circular bay

window on one side which will serve as a sitting room; attached to which dormitory will be a completely equipped bedroom and dressing room. The corridor which runs along the side where the officers will patrol is divided from these rooms that I speak of by a glass partition, so that our men are thoroughly under observation every hour of the day and night, and there will be no opportunities whatever for some of those things that penologists so much dread. In addition to that, we have a number of single rooms and a number of cells; but in a prison which is destined to accommodate 600, we are only putting in 40 cells. The men who behave and who demonstrate that they can appreciate that dormitory life and maintain the condition of it, we hope to give ultimately a single room; and the men who fail to appreciate this dormitory life and don't behave as we wish them to will then be demoted into a cell; but we are going to try, as I say, to get those boys through life, if possible, without the cell. Will we succeed? I don't know. I don't know. We have our critics; but this world will never be saved by the critics; it will be saved by the dreamers. The history of humanity is the history of indomitable hope. Emerson says that "Every thing is free to the man that can grasp it;" that "He who despairs is wrong."

In dealing with delinquents, it is the personal touch that tells. Human nature craves for sympathy. Kingsley was once asked what the secret of his joyous, buoyant life was; and his ready reply was: "I had a friend." Our Saviour was no exception to this rule; for as our Saviour approached Gethsemane, he yearned for a friend whom he could rely upon to wait and watch while he endured; and expressed it in that pathetic request to the drowsy Peter and his sleepy comrades. When we see a very simple duty staring us in the face in dealing with this class, we are too prone to say, "Lord, here am I. Send him." It is an easy matter for a man of means to write his check, or give his cash; but it is an entirely different thing to carry that gift to some poor fellow who is down and out and sweeten it with the fragrance of personal kindness.

"Not what we give, but what we share;
The gift without the giver is bare."

We have church service at our place every Sunday afternoon and Wednesday afternoon; one day our preacher failed to materialize. The men were in the chapel; and I did not wish to have them return to the cells

without saying something to them; as I could not preach I thought I would do the next best thing, and I would read another fellow's sermon; only, I gave the other fellow credit for it. I was reading a book just then that interested me very much; and I went down to the office and got it, and I read the first chapter; and when I finished, I asked if I should read more, and they said, "Yes, Warden." I read a second and a third chapter; I read as long as my voice would hold out; and as I had finished, a man down in the audience said, "Won't you be kind enough to tell me the name of that book, and the author?" I was very glad to have them ask the question; I told him. The next morning when I was going through the prison industries, the officers kept asking me what book I read, the previous day. I said, "Why do you ask?" They said, "The men are all talking about it." I sent down town and got fifteen copies and sent it around among the cells, with instructions that no one man could keep it for more than a week. When we collected the books at the end of the first week, I found that a great many men had taken paper and copied out portions of it. This was practically a non-reading population. They had refused a lot of good books we had put in our library which I had thought were fine, much to my disappointment. Perhaps you would like to know the kind of book they so much enjoyed; and, with your permission, I will just read you the first page of the first chapter.

"Man has two Creators: his God, and himself. The first creator furnishes him the raw material of his life and the laws of conformity with which he can make that life what he will. His second creator, himself, has marvelous powers he rarely realizes. It is what a man makes of himself that counts. If a man fails in life he usually says, I am as God made me. When he succeeds in life, he proudly proclaims himself a self-made man. Man is placed into this world not as a finality, but as a possibility. Man's greatest enemy is himself. Man in his weakness is the creature of circumstances; man in his strength is the creator of circumstances. Whether he be victim or victor depends largely on himself. Man is never truly great, merely for what he is, but ever for what he may become."

Now, that is pretty good meat. And that afternoon I was the one who learned the great lesson; for I learned that if we approach this subject in the right way we can waken, even in dormant minds, a desire for good literature. And my little experience of the afternoon revolutionized my method of dealing with the boys in this respect.

My time is up.

(A Voice: "Go on!")

A MEMBER: Who is the author of that book?

DR. GILMOUR: Dr. Jordan, of Boston, is the author of that book, and it is called "Self-Control." If you hadn't asked me that question I would have thought I had missed my mission here to-night. Briefly and hurriedly I have just tried to sketch some of the phases in dealing with delinquency. Who are they for whom we should do these things? What claim have they upon us? What is our relationship to them? Did you ever hear the story of the Scotch girl, the one who was carrying a crippled boy over a street-crossing in Edinburgh? A gentleman, seeing her burden, hastened up to assist and sympathize with her; and the girl looked up smiling and replied: "Ah, sir. I dinna mind it. He is my brither!"

CHICAGO HOUSE OF CORRECTION

JOHN S. WHITMAN, WARDEN.

The Chicago House of Correction was established and is maintained by the City of Chicago in accordance with the provisions of an Act of the State Legislature, in 1871. It covers sixty (60) acres of ground, the total valuation of real estate, buildings and equipment being \$1,618,688.00. During the year ending December 31st, 1910, there were 13,083 commitments to the institution. This total includes 1,383 women, 355 boys under 18 years of age and 11,345 men. The daily average population was 1,631 (a decrease from 1,766 in 1909, and this latter figure was a decrease from 1,852, which was the daily average during 1908). Persons are committed for violation of state statutes in cases of misdemeanor, and for violation of city ordinances. In the latter case the fine imposed is worked out at the rate of fifty cents per day; however, the maximum term of imprisonment for failure to pay fine is fixed at six months, and an allowance of three days per month is made for good conduct if the limit of imprisonment is served. For violation of the state statutes a fixed sentence is imposed by the Court, the maximum being one year. For violation of certain sections of the statutes an additional fine may be imposed, which, if not paid, may be worked out at the rate of \$1.50 per day after sentence has been served. The law providing for the allowance of three days per month for good conduct also covers these cases if confinement is for six months or more.

All inmates over 18 years of age who are not incapacitated from work by sickness or old age, are furnished with healthful employment; the principal industries being those that furnish products needed and to be used by the City. A limited and comparatively small percent of the inmates are employed in the manufacture of articles placed on the market in competition with those manufactured by paid labor. For instance, the city uses a great amount of crushed stone in the repair and building of streets. This is quarried, crushed and loaded in the cars on our grounds by inmates at a great saving to the city. They are also engaged in the manufacture of sewer brick used by the city, the clay used in this industry being excavated

within the walls of the institution. We also conduct a printing shop where most of the city's printing is done.

The laundry work for the Police and Health Departments is done here at a great advantage to those departments. We manufacture all clothing, shoes, etc., that the prisoners wear. We make all permanent improvements to buildings and grounds as well as do the new construction work. About one-fifth of our inmates are engaged in the manufacture of chairs, broom and leather goods and these are the only articles placed on the market.

The actual receipts of the institution during the year 1909 were \$210,591.48; this amount, however, includes \$38,287.00 collected as payment on fines. In addition to the above, it is conservatively estimated that the earnings of the institution in making permanent improvements and in new construction work are not less than \$148,873.00. The total expenditures including the purchase of materials for new construction and of amounts appropriated by the city to be used at the House of Correction in its management amounted to \$291,053.03.

The per capita cost per diem for feeding inmates during the year 1909 was twelve cents; the cost per diem including all expenditures was forty-six cents. The cost as stated above is somewhat increased because of the fact that we maintain as one of the departments of the institution what is known as the John Worthy School. This is not a school in name only, but has all the facilities for giving the class of boys that are sent to us from the Juvenile Court the education and training they need; and their needs are greater than those ordinarily sent to the public schools, for most of them have not had the chance in life to develop physically or morally as boys have who come from well regulated homes where proper influence prevails, and where they are encouraged to profit by the educational advantages furnished by our public schools. You will find there not only the ordinary class rooms with a competent teacher in charge of each, but manual training facilities and a well-equipped trade school, an indoor gymnasium, as well as outdoor play grounds and a swimming pool. We also teach them to do gardening and in a limited way give them an opportunity to develop any inclinations they may have to follow an agricultural life.

I desire to call particular attention to a cell house recently built here for men, in which there are 334 cells, each having an outside window which

can be operated by the occupant of the cell. Each cell is also equipped with high class plumbing, including wash basin; in fact, sanitary conditions are as perfect as it seemed possible to make them. You will find no dark corners in the building or places where the ventilation is not perfect. The valuation has been conservatively fixed at \$225,000. The actual cost is less than \$65,000.00. The difference between these amounts represents the value of the inmates' labor and the product of the institution used in its construction. No mechanical superintendents were employed, our officers acting in the dual capacity of guards and instructors, the inmates performing all the labor, even the plumbing, electrical work, and, in fact, all of the labor required to finish the well-constructed up-to-date building. The center corridor is 260 feet long by 30 feet in width, which we converted into a dining hall. All the prisoners occupying cells in the building have their meals served in this space and the tables and benches used for this purpose are also used for carrying on religious and educational work among the inmates during the evening or on Sundays. This is an entirely new innovation in prison management, but is being carried on with success.

The many advantages of a cell house like this one, built on the plan of the center corridor, are becoming more and more apparent as they are put into practical use. The outside window in each cell goes a long way toward preventing the spread of that dreaded disease, tuberculosis. Light and airy cells not only mean sanitary conditions, but afford an opportunity for the inmates to look out through windows and over walls and witness natural, if not pleasant scenes, which have a tendency to inspire them with more wholesome thoughts than if their gaze rested continually upon stone walls and iron bars. The entertainment of wholesome thoughts is much more apt to be an inspiration to better citizenship than can be suggested by dismal surroundings.

The experience we have had in this cell house has shown that the objections raised by some to a style of construction that would permit the prisoners sitting in cells facing each other across a center corridor is not justified. We have had no difficulty whatever because of this. The discipline maintained has been of a higher order than in the old-style cell houses and has been obtained with comparative ease. It is the intention of the management of this institution to prevail upon the city authorities to grant an appropriation

for a series of cell houses built on the center corridor plan to take the place of the old-style ones.

Society nowadays expects more of the management of penal institutions than merely to keep its inmates safely. Some inmates may be lacking only in moral or religious training; with others it may be of the utmost importance that they receive medical or surgical attention; and again, educational advantages often prove to be just the needed inspiration to the unfortunate. Proper physical or mental development is nowadays acknowledged to be the panacea for the delinquent youth, and to some extent the adult. The consideration of these facts will tend to inspire the inmates with at least a wholesome respect for the law, and I believe that a more helpful discipline can be maintained among the inmates when they can be satisfied that something is being done for their benefit and enlightenment. This has been proved to be true in the handling of the delinquent youth in our modern institutions who are no longer looked upon as or called criminals, but young men who can be developed into good citizenship, by first determining their needs and then finding ways and means of supplying them.

In my opinion what has been done for the youth can also be accomplished in a large measure with the adult, especially in a corrective institution such as this. The discipline in a corrective institution must necessarily be exacting but at the same time it should be permeated with that degree of kindness that would inspire the prisoner to his best efforts with the feeling that not only the right but the beneficial thing is being done for him. The law commits to our keeping the undisciplined, the unsocialized and the lawless, who have perhaps never realized the importance of self-control. The discipline maintained among this class by creating only a fear of punishment will in most cases fail to bring about results that are beneficial; such discipline does not prove to be correctional, but on the contrary has the tendency to encourage the practice of deception, for often they have no other incentive when violating the rules than to show that they can avoid detection. It seems to me that discipline to be corrective should be instructive and educational; instructive to a degree that would satisfy the prisoner that the law is not revengeful, but that in restraining him from his liberty it wants to point out to him his weaknesses and to assist him in overcoming them; and educational to a degree that would teach him to

formulate rules to govern himself so that he might become a useful member of society. Then he will be more apt to consider the rules made to govern his conduct while in prison as really for his good, and he will co-operate with them to such an extent, at least, that he does not resort to deception. If a prisoner can be taught the lesson of self-control he is better prepared to adapt himself to the outside world and to good citizenship. If all inmates are not susceptible to this form of discipline, a sufficiently large percent respond, and when the great number of first offenders in an institution of this kind is considered, it is well worth an extra effort to maintain a discipline that will appeal to them with beneficial results to the community.

In my estimation, it is highly important in an institution of this kind to be prepared to give the best of medical or surgical treatment to those of the inmates who need it. We have a medical department well equipped with all the facilities of a first-class hospital. The regular staff of that department consists of four physicians and two trained nurses who live on the grounds, besides specialists who visit the institution at regular intervals. In addition to this we have a staff of consulting surgeons and physicians, each of whom visit the department at least once a week. No better attention is given patients in any hospital than our inmates receive. From fifty to seventy-five major operations are performed each month by as competent surgeons as there are in the city. The results obtained in this department have been most gratifying, and tend to prove that if permanent progress is to be made in the matter of the management of penal institutions, much assistance must come from a well regulated medical department, where the mental condition of the inmates is considered as well as the physical.

THE AMERICAN JAIL PROBLEM

FREDERICK H. WINES, SECRETARY ILLINOIS STATE BOARD OF ADMINISTRATION.

[If the discussion which has followed the meeting of the International Prison Congress in Washington last October has brought anything clearly to the surface, it is that the county jail system of this country has succeeded in turning upon itself the spot-light of Europe. Why should we not take advantage of this borrowed illumination to become familiar with our own problem?—Editor.]

The following extracts give the gist of an interesting study of our jail system which was read before the last Maryland State conference of charities, and recently published in *The Institution Quarterly* of the Board of Administration of Illinois.

“So much has been said, and so well said, regarding the folly and iniquity of the county jail system in the United States, that it seems like a waste of breath to discuss it further.... No fault can be found with any one jail, that may not be found with scores or hundreds of others. There are jails that are too large, and jails that are too small; insecure jails, unsanitary jails, jails without light, jails without heat, jails without ventilation, filthy jails, jails that are not properly governed, palatial jails, and jails that are not fit for occupation as stables or pigstyes. I suppose that I have personally inspected nearly or quite one-fourth of all the jails in this country, and my attention has been drawn to every form of defect and disgrace by which a county prison can be disfigured.... But in what forum is the case to be tried? Who is to exercise the necessary jurisdiction? Where is the jury charged with the duty of rendering a verdict? Who will select the jurors? and when? and where?...

“It is not difficult, where the conditions in some county jail are shown to be shameful and intolerable, to arouse local sentiment in favor of some measure of improvement. If it is overcrowded, build an addition. If it is filthy, inaugurate a general house-cleaning. If it is unsafe, make it stronger. If it is unsanitary, it is easy to supply artificial light and heat, or to put in sewerage, water and modern plumbing. With these and other changes, it

will do. If not, or if the sheriff needs a fine official residence, and the town wants a handsome public building and profitable contracts for its erection, then it may be possible to bring about the construction of a new prison.

“But what does all this really amount to? In all the essentials of good prison organization and management, the new jail is no better than the old one; and the money spent upon it is simply an addition to the immense investment in a wretched and indefensible system. Instead of being an aid to reform, it is an obstacle to reform. It increases the weight of the already too heavy burden resting on the shoulders of the friends and advocates of the thorough and effectual reconstruction of our existing prison system, from the top to the bottom.

“It would therefore seem to be high time for a radical change in our method of attack. We must adopt a new plan of campaign, which will aim not at the capture here and there of an outwork, so much as at the occupation and destruction of the innermost citadel.

“... Does any one imagine that the abuses at which I have barely hinted could long survive, if all convicted offenders, major and minor, misdemeanants as well as felons, were in the custody of state instead of county officials? The initial result would be a diminution in the number of prisons. There are many times too many local prisons. Some of them stand empty from year to year; some are overcrowded, at least during the weeks immediately preceding a term of the criminal court. The needless multiplication of jails entails a heavy pecuniary burden upon the people.

“The massing of sentenced prisoners would admit of their classification, and of the introduction of reformatory methods of dealing with them—useful, healthy occupation both for body and mind, and some measure of education and religious influence.

“The officers in immediate charge would naturally be men of higher grade, their tenure of office would be more secure, and they would have no other duties to distract their attention from their proper work. They would have little time or opportunity for pernicious political activity. They could be better paid.

“The corrupt fee system, under which it is to the pecuniary interest of some official that arrests should be multiplied, would go by the board.

“We might hope to see the last of iron cages, and foreigners could no longer satirize our prisons under the generic term of menageries. The state would avail itself of the services of competent architects, and traveling salesmen would not be able to sell to unsuspecting and simple-minded commissioners and supervisors their illusory spectacles in shagreen cases.

“In a word, we should have an opportunity to replace irresponsible by responsible prison management, and competency would in time take the place of incompetency.

“This proposal implies, of course, the complete and final disavowance of the prison for men convicted of crime from the house of detention for those awaiting trial, whose guilt is yet unproven, and who may be innocent. From the days of Plato to the present moment, that has been a cardinal maxim of prison reform. The jail system has prevented the realization of this ideal.

“It is not the house of correction, but the house of detention, which constitutes the most refractory element in this complex problem. Let us lay that portion of it aside, for the moment, and consider the other, which is easier. There is no practical obstacle to the establishment of one or more state houses of correction in any state, except the indifference of the legislature; and that can be overcome by a campaign of education....

“The point is to insist that the condemned misdemeanant, like the condemned felon, shall be committed to the custody of the state, which alone shall have the power to execute upon him, the sentence of the court. This simple measure may be relied upon to do away with one-half of our present grounds of complaint.

“I have no fear that, this first step taken, the state will not, sooner or later, see its way clear to take a second, and a third, and as many other steps as may from time to time appear to be expedient and practicable. ‘I do not ask to see the distant scene; one step enough for me.’

“I confess that I do not see how, at present, it is possible to dispense with the county jail as a house of detention. Ill-adapted as it is to that use, if we gain nothing, we at least lose nothing by conservatism as to this point. Consider the absolute necessity for having a place of confinement for prisoners awaiting trial. Consider the enormous cost of providing a new and improved house of detention in each county. If it should be said that so

many houses of detention are not requisite, that the state might be redistricted for judicial purposes, or that prisoners might be carried back and forth between counties, remember that the witnesses would also have to be transported, at great expense. Neither of these suggestions is likely favorably to impress a practical mind. Possibly there are jails which might be remodelled, so as to serve reasonably well as houses of detention only; and there may be counties in which the present jails should be condemned as nuisances, and houses of detention, properly planned for that exclusive use, might there be built. These are details which may be left to take care of themselves. Why put off doing what we can do, because there are other things that we can not do? The time may come when we can do more. Why advocate reforms which are sure to provoke such a united opposition as to insure their defeat in advance?

“On this subject, however, there is one suggestion that may well be made. The population of our minor prisons might be materially reduced, if a more liberal use were made of the constitutional right of bail. The purpose of temporary release under bond is twofold; to relieve the public and to relieve the prisoner. It is expected that the courts will exercise this power in a liberal spirit, and they do. Some of them are authorized to release prisoners on their own recognizance, at the discretion of the court. Every court should possess this right, and greater use might well be made of it. In our large cities, there are many persons guilty of disorderly conduct, or charged with the violation of some police regulation, or some trivial or purely technical offence, who would face trial, without being held in custody, but are unable to procure bondsmen. In both civic and rural communities, there are also many whose family and business relations are such, that there is no reason to apprehend that they will seek to avoid trial by running away. The fact that such persons can not furnish bail is no sufficient reason for their imprisonment. In all such cases, the committing magistrate must of course use wise discrimination in the exercise of his right to waive the usual bail-bond.

“It is further desirable that the criminal code should provide for the probation of the accused, in advance of trial.

“By the adoption of these and other similar methods, fewer men and women would be exposed to the peril of moral contagion in prison, which, under our present system, affects even those who may be, and in fact often are,

innocent. Moreover, it is an error to imagine that all who are guilty of the charges for which, under the statutes, if unable to pay a reasonable fine, they must endure a term of incarceration, are depraved. The boy who throws a ball through a plate glass window and is caught, is no worse than the boy who does the same thing and makes his escape without being arrested; nor the boy who can pay a fine, than the boy who can not.”

IN THE PRISONERS' AID FIELD

NEW HAMPSHIRE SOCIETY AFTER STATE REFORMATORY

At the session of the New Hampshire Legislature which adjourned on April 15, the New Hampshire Prisoners' Aid Association co-operated with the State Conference of Charities and Corrections and the State Federation of Women's Clubs in the advancing of two measures which were deemed of immediate importance to the State.

The first of these was a resolution calling upon the Governor to appoint special commission of three members to investigate and report to the legislature, at its next session, in 1913, on the desirability of a State Workhouse or Reformatory. The resolution, which carries a sufficient appropriation to pay the expenses of the investigation, passed the legislature and received the signature of the Governor. A similar measure presented at three previous sessions met with defeat, owing to the false impression that a central state reformatory would mean additional cost to the taxpayers. This impression was weakened by the arguments before committees that the assembling of all minor offenders in one institution would make it possible to put them at some profitable industry and in the end save money. At present minor offenders are confined in about 20 county jails and houses of correction, in only one of which is there a population sufficient to operate an industry. In nine of the jails idleness is the rule. In the remaining institutions the prisoners are dependent upon work about the buildings and upon the farm, and when this work is slackest the prisons are fullest. It is hoped that the study of the commission will result in recommendations whose execution by the next legislature will in New Hampshire do away with the evils of the locally administered jail and house of correction.

The second item on the program was a bill providing for medical inspection by the state board of health of all penal institutions, and for thorough examination of all prisoners, at the times of committal and discharge, not only with reference to their present physical and mental condition, but also

with reference to their personal and family history as to mental capacity and delinquency. This measure was felt to be important, aside from its immediate advantage in institutional administration, in two respects: (1) It would undoubtedly bring about some changes in classifying and treating offenders; and (2) the careful recording of the results of the examinations would probably in the course of years build up a mass of data from which it would be possible to draw inferences as to methods of preventing delinquency. This bill was not put into presentable shape until so late in the session that it failed of favorable consideration. The chief opposition came from those who believed that the cost of careful medical examinations in county institutions would be such as materially to raise the budget for the hospital departments. On the contrary, the warden of the state prison testified that the result of such examinations as have been voluntarily adopted by him has been a lessening in the expenses of the hospital department. The centralization of minor offenders in a state reformatory will facilitate the adoption of this needed reform.

Similarly it will probably be easier to get a system of probation for adult offenders if there is a state reformatory. The Prisoners' Aid Association pressed a probation bill two years ago and failed. This year the measure was held in abeyance so as to give the more fundamental bill the right of way. A state penal board has for many years been desired by many. This too, would logically follow state control of minor offenders. So the Association feels that the first battle has been won in the wider campaign. The next battle, and the decisive one, if we win it, will be that concerning the actual establishment of the state reformatory.

E. L. P.

A GREAT BRITAIN PLAN

Mr. Winston Churchill's attempt to lighten the load which every discharged convict has as a handicap in his efforts to retrieve his position will be watched with much interest in all Anglo-Saxon countries. A new commission is to be organized, with the financial and moral backing of the government, for the purpose of uniting and directing the efforts of all societies which have as their common purpose the opening of opportunities

for legitimate activity to men who have made a mistake and paid the penalty for it. The Home Secretary is to be at its head and, while its scope has not yet been and possibly never will be definitely delimited, it will make possible the abolition of police supervision which has been one of the almost insuperable obstacles in the path of every ex-prisoner who tried to live down his past in Great Britain. Police officers, as a rule, are too actively engaged in the militant work of fighting crime to be able to share in the task of rehabilitating the vanquished. We have not, in Canada, the problems in this connection which Great Britain has to solve but we have enough reasons for fearing that they will come with our rapid development to make our interest in the new movement more than an impersonal one.—Montreal (Que.) Star.

THE PAROLE SYSTEM AS IT WORKS

Joseph T. Byers, now the Secretary of the New Jersey State Charities Aid and Prison Reform Association, developed, while he was superintendent of the New York House of Refuge, the parole system of that institution to a high degree. In his final report to the board of managers of the House of Refuge he said:

“The most important work of the institution is that of our parole department. It has been a source of great gratification to me, as I am sure it has been also to the board, to note the development and success of this work. Convinced that short parole periods of supervision were unwise, our work was organized on a basis of supervision that should last as long as the law permitted, namely, during minority. To those who would criticise this period as being excessive and likely to work hardship to the boys, to make them restive and intolerant, I can only say that close observation during the past five years does not warrant any such statement. The monthly reports of the boys have been made, as a rule, very promptly and satisfactorily. They have not shown any great desire to be released from parole supervision; and I present as further evidence of the fact that our parole supervision has been properly adjusted, the more than fifteen hundred visits made to me during the past twelve months by paroled boys. Three-quarters of these visits were purely voluntary on the part of the boys. The credit for this condition of

affairs is largely due to the parole officers. They have been tactful, sympathetic, resourceful and in every way deserving of the full confidence I have had in their integrity and efficiency.

Two thousand five hundred and five boys have been actually under supervision. Of these, 914 are still reporting and doing well, and 237 were doing well when supervision expired; 1073 have for one reason or another been unsatisfactory on parole. Of these 791 have been returned to the institution (including 56 voluntary returns); 154 have been committed to other institutions or are now on trial, and in 128 cases supervision expired with the boys not doing well. In 281 cases out of 2505 nothing is at present known. This means that 11.21 per cent. of our boys are out of touch with the institution, having left home, family moved, or for some other cause. Five hundred and six boys have attained their majority and have therefore passed from under supervision. At the time of expiration 237 of the 506 were doing well; 128 were doing badly, or were at the time in other institutions; while in 141 cases no information was at hand. It is only fair to state that of this latter number (141), 80 are boys who were paroled before October, 1905, which was before adequate parole supervision had been established. Taking only the cases of these 506 boys who have graduated from our supervision, present records enable us to account for only 46.84 per cent. who were known to be doing well. In making this statement we are not crediting ourselves with probable satisfactory cases; any boy concerning whom definite information is not at hand is placed in the unsatisfactory class.

Short parole periods are a fallacy. Of the 202 boys returned for violation of parole, 49 were out of the institution more than a year and 18 of them more than two years.

Thirty-six per cent. of 202 delinquents were returned for crime (burglary, larceny, forgery, robbery, picking pockets, and receiving stolen property). Of the total number of Protestant boys on parole 09.26 per cent. were returned for violation; of the whole number of Catholic boys, 14.04 per cent.; of the Jewish boys 14.66 per cent.

PAROLE LAW ADOPTED IN TEXAS

The new parole law in Texas embodies the following important features: A board of prison commissioners acting as a board of parole; eligibility for parole when the minimum sentence has expired; the retaking by the employees of the board of delinquent paroled men; meetings of parole board when necessary; opportunity for each prisoner at expiration to appear in person or before board; merit system of recording prisoner's life and conduct during term; absolute release at discretion of board; agent for employment and supervision; delinquent paroled prisoner to be regarded in same light as escaped prisoner.

“When a convict who has been paroled shall have complied with the rules and conditions governing his parole until the end of the term to which he was sentenced, he shall upon a written or printed discharge by the board of prison commissioners, setting forth these facts, be entitled to a restoration of his citizenship by the Governor of the State of Texas.”

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Convicts Put at Road Making.—With the coming of open weather the question of the relation of convicts to road making is reviving in different parts of the country.

W. M. Gammon, Rome, Ga., chairman of the Board of Commissioners Roads and Revenue, Floyd County, writes to the Manufacturers' Record:

“The road from Rome to Chattanooga will be a graded macadamized road, with concrete-steel bridges over all streams and concrete culverts over all drains. Through Floyd county it will be of the same class as that of the government road through the Chickamauga Park to Lafayette in Walker county, with which this road will connect.

“The road will be built with convict labor. This county has two gangs of 50 convicts each, 60 mules, seven road graders, two traction engines, with teams of steel cars and road rollers. The bridges and culverts will be built by a bridge gang of trained convicts. These convicts have become really experts in this line and will construct the bridges at about one-half the contract price. In fact, we find the concrete culverts with this labor about the cheapest we can build—about \$3 per cubic yard. With this gang we have built over 30 miles of this class of roads the past 18 months, 30 concrete-steel bridges and 120 concrete culverts.

“If all the States would adopt the Georgia convict system, we would in a few years revolutionize road building in the South and have first-class roads from the Potomac to Mexico.

“Chattanooga county and Walker county will only have about 16 miles to build of this road, and they propose to connect with our road and the Government road at Lafayette.

“This county has already built two roads of this character from Rome to the Alabama line, and with the co-operation of the Alabama counties expect to continue them to Birmingham. This county will also complete this summer one road to Polk county and another to Barlow, and with the co-operation of the other counties expects to continue the roads to Atlanta.

“We expect in the near future to have a through line from Chattanooga to Birmingham and Atlanta, passing through Rome. We advocate putting all convicts on the roads, and when the people understand the great benefits to be derived from this work we will soon have a splendid highway from Washington through Virginia, Tennessee and Georgia to the Gulf Coast in Florida.”

The new Kansas law allowing the prisoners of county jails to work on roads will greatly relieve congestion in the Wyandotte county jail, save that county thousands of dollars and improve the roads.

The Commissioners of Wyandotte county are planning to have steel cages built, each one to hold four “bunks,” to care for the prisoners while they are working in the quarries and on the roads. In this way the men can work eight or nine hours a day and no time will be consumed in bringing them to and from the jail. The cages will be built on wheels, so that they can be drawn from place to place.

George Junior Republic During 1910—The annual report for 1910 of the George Junior Republic, Freeville, N. Y., looking, with its pictures of open cottages and stretches of unwall'd country, like a real estate company's advertisement of rural sites, or the prospectus of a summer camp, is out. One imagines, as he reads, that he has in hand not the annual statement of an institution for delinquents, but a breezy report on the growth of a modern village, or a pamphlet boosting some “Summerville—1915” movement.

On October 1, 1910, there were 137 “citizens” in the George Junior Republic. A “citizen” is simply an inmate. During the year there had been discharged 89 boys and girls, and just the same number had been received. With the exception of four, concerning whom it is not stated how they were received, the report shows that these had been taken in either for delinquency or for improper guardianship, from poor officers, from parents

or guardians, or by their own application. Eleven are listed as having been received for delinquency, and 15 by their own application.

The Republic is a training school for all classes of boys and girls. The only qualifications for membership are sound minds and bodies—no mental defectives or cripples, deformed or sickly children are retained—and an age of at least 14 years. The Republic is a big farm of 350 acres, having upon it a modern village with its own system of water, sewerage, steam heat, roadways, and cement walks. Perhaps the two main reasons for its interest to most people are its form of government, with legislative, judicial, and executive departments, and the independent basis of self-support which every boy and girl within its bounds is obliged to maintain.

It has often been said that a successful school in the George Junior Republic was an impossibility because of the heterogeneous character and training of the pupils. From 1896 to 1905, a school for elementary pupils was maintained. In the latter year was opened what is known as the Hunt Memorial School. Later a high school was added. In June, 1910, regents' diplomas were awarded to the first class of graduates from this high school. Four of the students entered college without conditions. The examinations in 1910 showed a decided academic awakening among the students. In June, 1910, the first prizes in the Owasco Valley prize speaking contest were awarded to a boy and girl from the Hunt Memorial School of George Junior Republic.

Existing without State aid, and with endowments which give an income of only \$1,151, the Republic faced, on September 30, 1910, a deficit of \$14,647.75.

In January, 1911, was opened a large gymnasium, the gift of friends of the Republic.

Some Bad Conditions in North Carolina—That all the county convict camps of the state be placed under a state board of supervisors is a recommendation embodied in the annual report for 1910, just issued, of the Board of Public Charities of North Carolina. Thirty-nine counties maintain these camps. Reports of the county commissioners show that in 17 of these counties the prisoners in the camps are chained together at night. Sixteen

counties report that whipping, administered usually by the superintendent or foreman, is resorted to as a form of punishment in the camps.

The report urges also that the burden of executing the conditional release, or parole law, be lifted from the Governor, on whom it now rests, and placed upon the prison board of directors, who should be made a parole board with power to release conditionally every prisoner except those sentenced for life.

Concerning the county jails in the state, the report says:

“Generally speaking, the prisoners are not kept in as cleanly a condition as they should be. The bedding and cells more particularly should be especially cleansed whenever not occupied and ready for the next comer. The great difficulty is the fact that prisoners wear their own old clothing into the jail and thus introduce dirt and vermin which require a continual fight from those in charge. A limited number of suits could be provided by the county and the men required to bathe and put these on while their own are fumigated. There is no excuse for the filth in some of our jails.”

English Progress—In the Providence (R. I.) Sunday Journal, of April 9th, the London correspondent of that paper quotes Thomas Holmes, Secretary of the Howard Association of London, as follows:

“If some of the American methods were grafted on to the English prison administration, the effect would work remarkably for good. I found that their probation system was worked much more effectively and thoroughly than it is in England. Their probation officers are fitted absolutely for the work. On this side there are no paid probation officers as such; they are either voluntary workers or servants of some charitable society, not state officials. At present we are only playing with the probation idea in England. If we could get men of character and capability, occupying fairly well-paid posts, we should have better results than you have in America.”

Secretary Holmes went on to say that in his opinion the weakness in the position of the American probation officers resided in the fact that the judges made the appointments. If the probation officer was a strong man he influenced the judge too much, and if a weak man he was apt to become creature of the judge.

He feels strongly that England is following the lead of America, slowly but surely, in the development of the parole system, though no legislation has as yet been passed in this direction.

“We are getting tired of judges inflicting very long sentences—practically life sentences,” he says. “There is a constant agitation always going on behind the scenes to get sentence commuted. Again and again the Home Secretary—whom I know and respect—has to reconsider the sentences prisoners are serving. This puts him in a delicate position. He has to consult the judges who passed the sentences. If the Home Secretary commutes the sentence it is a snub to the judge.

“What we want in England at each prison is a board, consisting of the governor, chaplain, doctor, a representative of the Home Office and one or two visiting justices. They should have the power of releasing on parole any prisoner whose condition warranted that concession. But the American Board of Parole is not comprehensive enough; it is too much in the hands of one or two.”

The mercantile element in some of the American State prisons came in for some adverse criticism, but in the matters of greater space, better buildings, better equipped workshops, greater variety and volume of work and more recreation and education for the prisoners, the American State jails, said Secretary Holmes, are superior to the English. But in the construction and appointment of the local county jails he thinks the advantage lies with the English models.

“*Twice Born Men;*” *A Brief Review*—Prisoner’s aid workers will do well to read Harold Begbie’s book, “Twice Born Men.” It is a striking psychological study of men who have sounded the depths of human degradation and misfortune. Its chief practical value to those who are dealing daily with all sorts and conditions of men, will be in throwing light on a checkered past which is often only partly revealed by the applicants themselves.

The reader may feel that the author holds a brief for the Salvation Army and its work. One might suppose that he was unconscious of any other religious work being done, except for the fact that he specifically discredits the

efficacy of the ordinary prison chaplain's work. It is probably true that the average chaplain might not have sufficient patience with the particular type of man with whom Mr. Begbie deals in this book. We cannot forget, however, that this is only one of many varieties of human experience, and the average prison chaplain might be far more effective than any one else with the larger number of men whom the Army might regard as "Hopelessly Good," but who nevertheless need the regenerating and sustaining power of religion.

Notwithstanding this seeming limitation of the book, "Twice Born Men" is a splendid portrayal of the one more or less uniform type of the anti-social individual. We are especially impressed with the fact that the materials for this book were secured almost within a stone's throw of the aristocratic West End of London. It is almost inconceivable that a cultured community would permit the continuance of such a festering sore at its very heels. Fortunately few American cities have such dangerous proximity of the more healthful districts to its insanitary cesspools. May we not take hope from the fact that with a wider separation between the Avenue and the congested district the American cities are insisting upon the extermination of the latter? Their darkness is being expelled by the substitution of social settlements for saloons, and parks and playgrounds for penny-ante and gambling dens.

No reader of "Twice Born Men" can fail to have his faith quickened in the possibilities of human reclamation. Wide experience may discover not only one but many motives that will prompt the transformation of different sorts of men. Nevertheless it gives a renewed courage to feel that when there has been apparent failure all along the line, and when all the resources of church and state have been ineffective in preventing men from reaching the lowest dregs of humanity, there remains the unusual and striking method of the Salvation Army in its appeal to the deep-seated and imperishable instinct of religion.

F. E. L.

Washington Strives for Inebriates Hospital.—The various citizens' associations of Washington, D. C., will be asked to make a concerted effort to induce Congress to establish a hospital for inebriates and victims of the

drug habit, to which persons can be sent for treatment or be lawfully committed, so that they can be restrained from access to either intoxicating liquors or injurious drugs. The board of trade and chamber of commerce also will be urged to take up the matter.

The Washington Evening Star says editorially: "The need of a local hospital as a place of special treatment for inebriates has long been known and admitted in Washington. The present practice of confining dipsomaniacs and drug victims in a penal institution is suggestive of a bygone age. These unfortunates need treatment, judicious encouragement and some measure of restraint. But what they do not need is punishment. The workhouse is not the best place for alcoholic slaves, but the District is under the necessity of sending them there."

The Iowa legislature is considering a bill which provides that while the inmates of the state prison and reformatory are at hard labor and on good behavior, their wives and children under sixteen years of age shall be paid fifty cents a day by the state.

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